

Chaudhary Nursing Home Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 December 2020 · Writ-C No. 41868 of 2011 · **Writ disposed; relegated to CGRF; interim continued three weeks**

HEADNOTE

Challenge to an 18-month slow-metering supplementary bill as contrary to clause 5.6 of the U.P. Electricity Supply Code, 2005. The Division Bench held the dispute was factual and not examinable under Article 226, relegated the consumer to the Consumer Grievance Redressal Forum under the 2007 Regulations, and continued 2011 interim protection for three weeks. Clause 5.6 and the HV-2 tariff issue were not decided.

FACTUAL SUMMARY

Chaudhary Nursing Home challenged PVVNL's June 2011 supplementary bill of about Rs. 17.48 lakh for alleged slow metering over 18 months from December 2009. A check meter installed in June 2011 showed the old meter slow beyond the permissible limit and it was replaced. The consumer argued that clause 5.6 confined such assessment to three months, and also disputed HV-2 tariff enhancement. The High Court had in 2011 stayed further action on a Rs. 4 lakh deposit.

HOLDING-UNITS

INTERPLAY · UP-2005::5.6

slow-meter supplementary bill — Article 226 vs CGRF

HOLDING

Whether a slow-metering supplementary bill may run for 18 months on a check-meter report, or only three months under clause 5.6, is a question of fact that cannot be enquired into under Article 226. The consumer must approach the Consumer Grievance Redressal Forum under the UPERC (CGRF and Electricity Ombudsman) Regulations, 2007, which may also hear an HV-2 tariff dispute. The writ is disposed of without entering the merits; interim protection continues for three weeks and stands vacated if the Forum is not approached. ¶ 3

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Challenge to an 18-month slow-metering supplementary bill as contrary to clause 5.6 of the U.P. Electricity Supply Code, 2005.. ¶ 3

meter-dispute-must-exhaust-clause-5.6-before-writ Challenge to an 18-month slow-metering supplementary bill as contrary to clause 5.6 of the U.P. Electricity Supply Code, 2005.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 5.6 CONFINES A SLOW-METERING SUPPLEMENTARY BILL TO THREE MONTHS, AND WHETHER A CHECK-METER REPORT CAN FOUND AN 18-MONTH DEMAND

¶ 2-3

NOT DECIDED — HV-2 TARIFF ENHANCEMENT

¶ 3

